

25NWCV02598 25NWCV02598

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Case Number: 25NWCV02598 Hearing Date: August 18, 2026 Dept: P

DARSHAN PRAVIN SEDANI v. LYFT, INC., ET AL.

CASE NO.: 25NWCV02598

HEARING: 08/18/2026 @ 9:30 AM

#7

TENTATIVE ORDER

Defendant Lyft, Inc.'s motion to compel arbitration is
GRANTED. Proceedings as to Lyft, Inc. are STAYED pending the outcome of
arbitration.

Moving party to give notice.

Defendant Lyft, Inc. (Lyft) moves for an order compelling
arbitration and staying these proceedings as to Lyft pending the outcome of
arbitration.

Background

On July 16, 2025, Plaintiff Darshan Pravin Sedani
(Plaintiff) filed this personal injury action against Defendants Lyft, Inc.,
Yograj Subedi, and Does 1 through 20. The form complaint alleges that on August
17, 2023, at or near 12261 Civic Center Dr., in the City of Norwalk, County of
Los Angeles, Plaintiff sustained injuries while riding as a passenger in a Lyft
vehicle driven by Subedi when, after arriving at the relevant location and

opening the door, Subedi accelerated the vehicle forward causing the door to strike Plaintiff. The complaint asserts two causes of action: (1) motor vehicle and (2) general negligence.

Legal Standard

Under both the Federal Arbitration Act (FAA) and California law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (*Winter v. Window Fashions Professions, Inc.* (2008) 166 Cal.App.4th 943, 947.) The party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. (Code Civ. Proc., § 1281.2.) This is usually done by presenting a copy of the signed, written agreement to the court. "A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state...the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference." (Cal. Rules of Court, rule 3.1330.) The moving party must also establish the other party's refusal to arbitrate the controversy. (Code Civ. Proc., § 1281.2.) "Once such a document is presented to the court, the burden shifts to the party opposing the motion to compel, who may present any challenges to the enforcement of the agreement and evidence in support of those challenges." (*Baker v. Italian Maple Holdings, LLC* (2017) 13 Cal.App.5th 1152, 1160.)

In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute, and general principles of California contract law help guide the court in making this determination. (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 541.) A petition to compel arbitration is a suit in equity to compel specific performance of a contract. (*Frog Creek Partners, LLC. v. Vance Brown, Inc.* (2012) 206 Cal.App.4th 515, 532.)

Under the FAA, general contract defenses, such as fraud, duress, or unconscionability, may provide grounds for invalidating an arbitration agreement if they are enforced evenhandedly and do not interfere with fundamental attributes of arbitration. (9 U.S.C.A. § 1, et seq.)

Discussion

Lyft moves to compel Plaintiff to submit his claims to arbitration and stay this action pending the outcome of arbitration. This motion is unopposed.

Validity of the Arbitration Agreement

Lyft moves to compel arbitration pursuant to arbitration agreements contained in its Terms of Service (Terms). Specifically, Lyft shows that Plaintiff, as a Lyft account holder, signed up for Lyft on March 5, 2016 and affirmatively agreed to the Terms. (Simmons Decl., ¶ 11.) After initially agreeing to the Terms as part of opening the account, Plaintiff affirmatively accepted the Terms six additional times between November 10, 2019 and April 24, 2025. (Simmons Decl., ¶ 12; COE, Exh. 1.) Safety Senior Specialist for Lyft explains that “[a] user cannot access the Lyft software platform without first creating a Lyft user account, and cannot request or purchase Rideshare Services through the Lyft App unless they have affirmatively accepted Lyft’s Terms of Service.” (Simmons Decl., ¶ 8.) As is relevant here, “[a]t the time Plaintiff accepted the operative December 12, 2022 Terms of Service, Plaintiff...was presented directly on the screen of the Lyft App with the full text of those Terms of Service, including the arbitration provision. At the top of the screen, immediately above the full text of the Lyft Terms of Service, the Lyft App presented Plaintiff with a banner stating, ‘Before you can proceed you must read and agree to Lyft’s Terms of Service.’ At the bottom of the screen, immediately under the full text of the Lyft Terms of Service, the Lyft App presented Plaintiff with a large ‘I Agree’ button, which Plaintiff was required to click to demonstrate consent and agreement to be bound by the Terms of Service and to proceed with use of the Lyft App.” (Simmons Decl., ¶¶ 15-16.)

The December 12, 2022 Terms, in effect at the time of the subject collision, contain the following arbitration agreement, in relevant part:

17. DISPUTE RESOLUTION AND ARBITRATION AGREEMENT

(a) Agreement to Binding Arbitration Between You and Lyft.

YOU AND LYFT MUTUALLY AGREE TO

WAIVE OUR RESPECTIVE RIGHTS TO RESOLUTION OF DISPUTES IN A COURT OF LAW BY A JUDGE OR JURY AND AGREE TO RESOLVE ANY DISPUTE BY ARBITRATION, as set forth below. This agreement to arbitrate ("Arbitration Agreement") is governed by the Federal Arbitration Act ("FAA"); but if the FAA is inapplicable for any reason, then this Arbitration Agreement is governed by the laws of the State of Delaware, including Del. Code tit. 10, § 5701 et seq., without regard to choice of law principles. [...] Except as expressly provided below, this Arbitration Agreement applies to all Claims (defined below) between you and Lyft, including our affiliates, subsidiaries, parents, successors and assigns, and each of our respective officers, directors, employees, agents, or shareholders. [...]

Except as expressly provided below,

ALL DISPUTES AND CLAIMS BETWEEN US (EACH A "CLAIM" AND COLLECTIVELY, "CLAIMS") SHALL BE EXCLUSIVELY RESOLVED BY BINDING ARBITRATION SOLELY BETWEEN YOU AND LYFT. These Claims include, but are not limited to, any dispute, claim or controversy, whether based on past, present, or future events, arising out of or relating to: this Agreement and prior versions thereof (including the breach, termination, enforcement, interpretation or validity thereof), the Lyft Platform, the Rideshare Services, the Lyft Services...any other goods or services made available through the Lyft Platform by Lyft or a third-party provider...and all other federal and state statutory and common law claims.

(Simmons Decl., ¶
12; COE, Exh. 8.)

The Court finds that Lyft meets its burden of establishing the existence of an arbitration agreement through its Terms that covers Plaintiff's claims. "By its terms, the FAA 'provides for the enforcement of arbitration provisions in any contract evidencing a transaction involving interstate commerce.'" (Victrola 89, LLC v. Jaman Properties 8 LLC (2020) 46 Cal.App.5th 337, 346.) Based on the Terms and because this agreement involves interstate commerce, the FAA governs the agreement. Lyft also explains that defense counsel made multiple attempts to meet and confer with Plaintiff regarding arbitration these claims but Plaintiff has refused to arbitrate. (See Code Civ. Proc., § 1281.2.)

The arbitration provision also contains a delegation clause: "All disputes concerning the arbitrability of a Claim (including disputes about the scope, applicability, enforceability, revocability or validity of the Arbitration Agreement) shall be decided by the arbitrator, except as expressly

provided below.” (Simmons Decl., ¶ 12; COE, Exh. 8, [exceptions not relevant here].) The Terms therefore manifest a “clear and unmistakable agreement” to have the arbitrator determine arbitrability. (Rodriguez v. American Technologies, Inc. (2006) 136 Cal.App.4th 1110, 1123 [“Although the scope of an arbitration clause is generally a question for judicial determination, the parties may, by clear and unmistakable agreement, elect to have the arbitrator, rather than the court, decide which grievances are arbitrable.”].)

Based on the foregoing, Lyft establishes an enforceable arbitration agreement within the Terms between Plaintiff and Lyft.

Accordingly, Lyft’s motion to compel arbitration is GRANTED.

Motion to Stay
Proceedings

California Code of
Civil Procedure section 1281.4 states that the court shall stay the action or proceeding if the court has ordered arbitration. (Code Civ. Proc., § 1281.4.) Accordingly, the Court will STAY proceedings as to Lyft pending the outcome of arbitration.